

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

QUIANNA NATHAN

Index No.

Plaintiff(s),

Summons

-against-

CITY OF NEW YORK, DET. JAVIER CORDERO, JOHN
AND JANE DOE 1 through 10, individually (the names John
and Jane Doe being fictitious, as the true names are
presently unknown),

Date Index No. Purchased:

Defendant(s).

To the above named Defendant(s)

CITY OF NEW YORK, DET. JAVIER CORDERO, JOHN AND JANE DOE 1 through 10, individually (the names
John and Jane Doe being fictitious, as the true names are presently unknown)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is plaintiff's residence
which is 630 Concord Avenue, Apt. 5A, Bronx, New York 10455

Dated: New York

March 7, 2017

Wright & Marinelli LLP

by _____

Robert Marinelli

Attorneys for Plaintiff

305 Broadway, Suite 1001
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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QUIANNA NATHAN,

Plaintiffs,

COMPLAINT

Index No.

-against-

CITY OF NEW YORK, Det. JAVIER CORDERO, and
JOHN and JANE DOE 1 through 10, individually (the
names John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.
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Plaintiff QUIANNA NATHAN, by her attorney, Robert Marinelli, Esq., complaining of
the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorneys' fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States.

JURISDICTION AND VENUE

2. The cause of action arose within Bronx County, within the State of New York.
3. Plaintiff QUIANNA NATHAN is a resident of Bronx County.

PARTIES

4. The Plaintiff QUIANNA NATHAN is and was at all times relevant herein a resident of Bronx County, New York.

5. Defendant CITY OF NEW YORK ("City") is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. At all times hereinafter mentioned, defendant JAVIER CORDERO ("Cordero") was a

police officer, employee and agent of the CITY, acting within the scope of his employment and under color of state law. Defendant CORDERO is sued in his official and individual capacity.

7. Defendant CITY OF NEW YORK maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, the individually named defendants, JOHN AND JANE DOE 1 through 10, were duly sworn officers of the NYPD and were acting under the supervision of the NYPD and according to their official duties.

9. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State of New York and/or the City of New York.

10. Each and all of the acts of the defendants alleged herein were committed by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

NOTICE OF CLAIM

11. With respect to plaintiff’s claims arising under state law, a Notice of Claim was duly and timely served on the Comptroller of the City of New York within ninety (90) days of the accrual of the cause of action alleged in this Complaint.

12. At least thirty (30) days have elapsed since the Notice of Claim was served, and defendant CITY has neglected and/or refused to make adjustment, settlement or payment with respect to the injuries complained of.

13. This action has been commenced within one year and ninety days after the happening of the events upon which the claims are based.

STATEMENT OF FACTS

14. On December 8 and December 9, 2015, inside the 40th Precinct at 257 Alexander Avenue, Bronx, NY 10454, plaintiff was wrongfully seized by police officers.

15. There was no basis for plaintiff's arrest.

16. While she was held against her will inside the precinct, Det. Javier Cordero texted plaintiff numerous sexually harassing messages.

17. After her release from the precinct, Cordero continued to sexually harass plaintiff via phone calls and text messages.

18. All of the above occurred as a direct result of the unconstitutional policies, customs, and practices of the CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees.

19. The aforesaid is not an isolated incident, defendant City is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau and the CCRB) that many NYPD officers, including the defendants, are insufficiently trained, supervised, and disciplined regarding: reporting misconduct of other officers; the use of excessive force; searching individuals and their private property; and seizing individual's personal property including cellular used to record police conduct.

20. Moreover, upon information and belief, defendant City was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant City has retained these

officers, and failed to adequately train and supervise them.

21. Defendant City is further aware that such improper supervision and training has often resulted in a deprivation of civil rights. Despite such notice, defendant City has failed to take corrective action. This failure caused the officers in the present case to violate plaintiff's civil rights.

22. All of the aforementioned acts of defendants, their agents, servants, and employees were carried out under the color of state law.

23. All of the aforementioned acts deprived plaintiff of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

26. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

27. As a result of the foregoing, plaintiff sustained, *inter alia*, physical and psychological injuries, pain, and mental anguish, emotional distress, embarrassment, humiliation, and deprivation of his liberty and constitutional rights.

28. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under State Law)

29. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

30. Defendants arrested plaintiff without probable cause, causing her to be detained against her will for an extended period of time and subjected to physical restraints.

31. Defendants caused plaintiff to be falsely arrested and unlawfully imprisoned.

32. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under Federal Law)

33. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

34. Defendants arrested plaintiff without probable cause, causing her to be detained against their will for an extended period of time and subjected to physical restraints.

35. Defendants caused plaintiff to be falsely arrested and unlawfully imprisoned.

36. Defendants violated the Fourth and Fourteenth Amendments because they arrested

plaintiff without probable cause.

37. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

38. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

39. By reason of the foregoing, and by sexually harassing plaintiff, failing to prevent other defendants from doing so, or causing an unlawful seizure and extended detention without due process, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each committed conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon plaintiff.

40. The intentional infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

41. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

42. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

AS AND FOR A FOURTH CAUSE OF ACTION
(Failure to Intervene under Federal Law)

43. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

44. Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

45. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth and Fourteenth Amendments.

46. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Municipal Liability under Federal Law as to defendant City)

47. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

49. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD included, but were not limited to, police officers: failing to report misconduct of other officers; using excessive force against individuals; unlawfully searching individuals; and unlawfully

seizing an individual's personal property.

50. In addition, the City engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of the City to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

51. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of plaintiffs.

52. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

54. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of the City and NYPD, plaintiff was subjected to excessive force and he was unlawfully arrested.

55. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

56. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:

- a. To be free from false arrest/unlawful imprisonment;
- b. To be free from unreasonable search and seizure;
- c. To be free from excessive force; and
- d. To be free from the unnecessary and wanton infliction of pain caused by intentionally denying or delaying access to medical care and intentionally interfering with the treatment prescribed.

57. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- A. full and fair compensatory damages in an amount to be determined by a jury;
- B. punitive damages against the individual defendants in an amount to be determined by a jury;
- C. reasonable attorneys' fees and the costs and disbursements of this action; and
- D. such other and further relief as appears just and proper

DATED: March 7, 2016
New York, New York

s/_____
Robert Marinelli, Esq.
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New York, New York 10007
(212) 822-1427

Attorney for Plaintiff